

## 25STCV09048 25STCV09048

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-27

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Case Number: 25STCV09048 Hearing Date: July 27, 2026 Dept: 529

EDWARD ROBINSON VS GENERAL MOTORS, LLC.

DEMURRER TO THE THIRD AMENDED COMPLAINT

Date

of Hearing: July 27, 2026 Trial Date: None

set.

Department: 529 Case

No.: 25STCV09048

Moving Party: Defendant

General Motors LLC

Responding Party: Plaintiff

Edward Robinson

Meet and Confer: Yes.

(Allison Decl.)

BACKGROUND

On

March 27, 2025, Plaintiff Edward Robinson filed a complaint against General Motors, LLC for various violations of the Song-Beverly Consumer Warranty Act as well as fraudulent concealment. On August 29, 2025, Plaintiff filed a First Amended Complaint. Upon the sustaining of a demurrer, Plaintiff filed a Second Amended Complaint.

Plaintiff

has now filed a Third Amended Complaint on May 11, 2026.

[Tentative] Ruling

Defendant General Motors LLC's Demurrer

to the Third Amended Complaint is OVERRULED.

## DISCUSSION

Defendant GM demurs to the Third Amended Complaint on the grounds Plaintiff's first, second and third causes of action alleging violations of the Song-Beverly Consumer Warranty Act are time-barred by the statute of limitations.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

GM argues the statute of limitations bars Plaintiff's first, second and third causes of action. Specifically, GM contends even assuming the date Plaintiff entered into the express warranty contract was the original delivery date of the Subject Vehicle, Plaintiff filed this action on March 27, 2025, which is after the statute of limitations ran on June 8, 2024. Thus, absent tolling, Plaintiff's first, second and third causes of action are barred

by the statute of limitations. However, Plaintiff does not specifically allege that any of these three tolling circumstances provided for by Code of Civil Procedure section 871.26. GM further contends other tolling doctrines do not apply as the Legislature declined to expressly do so.

The court finds the allegations sufficient for the purposes of a demurrer. As the court has previously noted, Plaintiff may allege tolling by delayed discovery, equitable tolling, or other applicable theories but Plaintiff had failed to allege when they discovered the warranty violations and why they could not discover them earlier. (See April 20, 2026 Minute Order.) Section 871.21 uses “shall be tolled as follows,” without expressly foreclosing others. The court finds now the allegations satisfy the standard for pleading late discovery. The TAC now alleges “Plaintiff only discovered (or was on notice inquiry of) GM’s failure to comply with its Song-Beverly obligations in 2023, when the Vehicle exhibited major problems with the drivetrain.” (TAC ¶16.) Moreover, “Plaintiff had no way of uncovering Defendant’s deception with respect to the defects given that Defendant performed various diagnostics and/or undertook repairs and claimed that nothing was wrong with the Subject Vehicle or that the Vehicle had been repaired.” (TAC ¶17.)

Based on the foregoing, the demurrer to the TAC is OVERRULED.